



File No.: EXP202208615

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 28, 2022, a complaint was filed with registration number REGAGE22e00032638462 before the Spanish Agency for Data Protection against UNIDENTIFIED RESPONSIBLE PARTY. The reasons for the complaint are as follows:

The complainant claims to have been a victim of a sextortion crime. A video has been published on which the complainant's name and surname appear, and the date on which the reported events took place is July 28, 2023.

Along with the notification, a link to the video published on the French version of the XVIDEOS platform is provided.

SECOND: On August 9, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

On September 15, 2022, the entity responsible for the website ***URL.1 WEB GROUP CZECH REPUBLIC, A. S. (CZECH REPUBLIC) was informed of the complaint filed with this Agency and was requested to provide information on the session IP address used during the publication of the reported content.

The same letter was resent via email to the address ***EMAIL.1 listed on the reported website where the publication was made, without receiving a response.

A record of the diligence is logged in the SIGRID case management system with the email sent to the electronic address ***EMAIL.1.

Notwithstanding the above, on September 19, 2022, it was verified that the content had been removed.

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A record of the diligence is logged in the SIGRID case management system with a screenshot of this verification.

As of the date of this report, no written response has been received from WEB GROUP CZECH REPUBLIC, A. S. informing of the session IP address used for the publication of the content, and therefore, the authorship of the reported facts could not be determined.

The Instagram social media profile mentioned in the complaint could not be found either.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy of the processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction."

Including images that identify or make a person identifiable in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR.

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In these cases, as in the one subject to the claim, the usual legitimizing cause is consent, in general. It is the person who uploads the personal data and images that can be viewed without any limitation who must demonstrate that they have that consent.

In order for that processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

III

Conclusion

The claim submitted requested the deletion of the video. The video was deleted days after notification was sent to the entity responsible for the website ***URL.1 WEB GROUP CZECH REPUBLIC, A.S. (CZECH REPUBLIC).

In order to identify the person who disseminated the images from the video subject to the claim, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before the adoption of the agreement to initiate proceedings, and once the claim has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the

processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing that involves mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Data Protection Agency acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

As indicated in the Facts of this resolution, it has not been possible to determine the authorship of said publication because the entity responsible for that publication has not sent a written communication informing of the session IP address used for the publication of the content; therefore, it has not been possible to determine the authorship of the claimed facts.

The profile of the Instagram social network mentioned in the claim could also not be found.

Thus, since it has not been possible to verify the identity of the data controller as indicated, by the Director of the Spanish Data Protection Agency,

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which ends the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-091222

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